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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

NATIONAL ELECTRIC POWER REGULATORY AUTHORITY

(Sale of Electric Power by Renewable Energy Companies) Guidelines, 2015

NOTIFICATION

Islamabad, the 23rd January, 2015

S. R. O. 53 (I)/2015.—In exercise of the powers conferred by Section 7(2)(i) of the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997), the National Electric Power Regulatory Authority, in order to maximize utilization of renewable energy generation potential and streamline its evacuation, hereby notifies the following guidelines for Renewable Energy Companies to sell electric power to its licensees.

PART I

PRELIMINARY

1. **Short title and commencement.**—(1) These guidelines may be called the National Electric Power Regulatory Authority (Sale of Electric Power by Renewable Energy Companies) Guidelines, 2015.

(233)

Price : Rs. 3.00

[135 (2015)/Ex. Gaz.]

(2) These guidelines shall come into force immediately.

2. **Definitions.**—(1) In these regulations, unless there is anything repugnant in the subject or context,—

- (a) “CPPA” means the Central Power Purchasing Agency within the National Transmission and Dispatch Company Limited;
- (b) “Distribution Company” means any of the *Ex-WAPDA* DISCOs or K-Electric Limited;
- (c) “NTDC” means the National Transmission and Dispatch Company Limited;
- (d) “Renewable Energy Company” means a company incorporated or registered in Pakistan and desirous of selling electric power from a renewable energy generation facility including solar, wind, small hydropower of 50 MW or less capacity, bagasse, other biomass, waste-to-energy, etc.

(2) Words and expressions used but not defined in these guidelines shall have the same meaning as under the Act and Rules and Regulations framed there under.

PART II

Sale of Electric Power

3. **Sale of Electric Power.**—(1) A Renewable Energy Company may sell electric power:

- (a) to a distribution company at 132 kV or below;
- (b) to CPPA on behalf of Distribution Companies at any voltage level including 11 kV and above.

(2) Where a Renewable Energy Company intends to sell electric power to a Distribution Company at inter-connection voltage of 132 kV or below, the concerned Distribution Company shall be responsible for financing, constructing and operating the inter-connection facilities.

(3) Where a Renewable Energy Company intends to sell electric power to CPPA at inter-connection voltage of 220 kV or above, NTDC shall be responsible for financing, constructing and operating the inter-connection facilities.

(4) Where a power producer intends to sell electric power to CPPA at inter-connection voltage of 132 kV, either the relevant Distribution Company or NTDC may finance and construct the inter-connection facilities. In both cases, the inter-connection facilities after being constructed and energized shall be operated by the Distribution Company, which shall be responsible for ensuring the evacuation of power.

(5) Where a Renewable Energy Company intends to sell electric power to CPPA at a voltage level below 132 kV, the relevant Distribution Company shall be responsible for financing, constructing and operating the inter-connection facilities, and for ensuring the evacuation of power from the Renewable Energy Generation Facility.

(6) The respective rights and obligations of CPPA and Distribution Companies arising under sub-regulations (4) and (5) shall be settled in bilateral sale/purchase agreements to be executed between them as per standing instructions of the Authority.

(7) The Distribution Company or NTDC, as the case may be, may raise financing for the inter-connection facilities from internal resources, local or foreign lenders or any other source including the Renewable Energy Company on mutually agreed terms, and may include such costs in relevant regulatory filings with the Authority. The inclusion of the inter-connection facilities in the asset base of the Distribution Company or NTDC shall depend on the terms and conditions of such financing or commercial agreements.

(8) The inter-connection facilities referred to under this regulation shall be designed and constructed in accordance with the relevant provisions of the Grid Code and Distribution Code.

[No. NEPRA/R/SAT-I/SER-01/1018.]

SYED SAFEER HUSSAIN,
Registrar.

